

20STCV10085 20STCV10085

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 20STCV10085 Hearing Date: July 16, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

53

MICHAEL F. WRIGHT, Individually and as Trustee of the Michael F.

Wright Individual Retirement Account and PRISCILLA H. WRIGHT, Individually and as Trustee of the Priscilla H.

Wright Individual Retirement Account

;

Plaintiffs,

vs.

George w. carroll

;

Defendant.

Case

No.:

20STCV10085

Hearing

Date:

July

16, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

GEORGE W. CARROLL'S MOTION TO COMPEL PLAINTIFF PRISCILLA H. WRIGHT'S
RESPONSES TO FORM INTERROGATORIES, SET ONE, AND REQUEST FOR SANCTIONS

(2)

DEFENDANT

GEORGE W. CARROLL'S MOTION TO COMPEL PLAINTIFF PRISCILLA H. WRIGHT'S
RESPONSES TO Request for production of documents, SET ONE, AND REQUEST FOR
SANCTIONS

MOVING PARTY: Defendant George W. Carroll

RESPONDING PARTY: Plaintiff Priscilla H. Wright

(1)

Motion

to Compel Plaintiff Priscilla H. Wright's Responses to Form Interrogatories,
Set One

(2)

Motion

to Compel Plaintiff Priscilla H. Wright's Responses to Request for Production
of Documents, Set One

The court considered the moving, opposition, and reply papers filed in
connection with these motions.

DISCUSSION

Defendant George W. Carroll (“Defendant”) moves the court for an order (1) compelling plaintiff Priscilla H. Wright (“P. Wright”) to serve responses to Defendant’s Form Interrogatories, Set One, and Request for Production of Documents, Set One and (2) awarding monetary sanctions in favor of Defendant and against P. Wright and her counsel Rick Augustini and Michael F. Wright in the amount of \$2,375.00 as to the Form Interrogatories motion and \$2,375.00 as to the Request for Production of Documents motion.

If a party to whom interrogatories and requests for production of documents are directed fails to serve a timely response, the propounding party may move for an order compelling responses to the interrogatories and the requests for production of documents. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).)

Defendant served P. Wright with Form Interrogatories and Requests for Production on March 21, 2023, but P. Wright refused to respond and threatened a motion for protective order. (Mateescu Decl., ¶ 2; Ex. A.) The parties entered into a stipulation on May 12, 2023, and Defendant served another first set of Form Interrogatories and Requests for Production on September 16, 2025. (Mateescu Decl., ¶ 2; Ex. B, C, PDF p. 29 [September 16, 2025 proof of service].)

P. Wright refused to respond again and Defendant served the subject Form Interrogatories and Requests for Production of Documents on September 26, 2025. (FROGs, Mateescu Decl., Ex. D, PDF p. 39 [September 26, 2025 proof of service]; RFPs, Mateescu Decl., Ex. D, PDF p. 83 [September 26, 2025 proof of service].) P. Wright did not serve responses to the Form Interrogatories or the Requests for Production. (Mateescu Decl., ¶ 2.)

Instead, P. Wright filed, on October 28, 2025, a motion for protective order, in which P. Wright requested an order excusing her from responding to any written discovery from Defendant. (Oct. 28, 2025 Notice of Mot. for Protective Order, p. 1:4-8 [requesting an order excusing P. Wright from responding “to any written discovery from Defendant[.]” including the “Form Interrogatories . . . that Defendant purported to serve electronically on September 26, 2025 . . . ”].)

The court finds that Defendant has not shown, as of the date that Defendant filed these motions, that P. Wright failed to timely serve responses to the Form Interrogatories and Requests for Production of Documents because (1) P. Wright filed her motion for protective order within the time that she was required to serve responses, and (2) P. Wright's filing of a motion requesting a protective order excusing her from serving responses to the Form Interrogatories and Request for Production stayed P. Wright's obligation to serve responses thereto until the court ruled on the motion for protective order. (Code Civ. Proc., § 2030.090, subd. (a) [authorizing a party to file a motion for protective order when interrogatories have been propounded]; Code Civ. Proc., § 2030.060, subd. (a) [authorizing a party to file a motion for protective order when demands for production have been propounded]; Civ. Code, § 3532 ["The law neither does nor requires idle acts"].)

However, because the court denied P. Wright's motion for protective order on April 22, 2026, P. Wright was required to serve responses to Defendant's Form Interrogatories and Request for Production. P. Wright has shown that she served responses to Form Interrogatories and Request for Production on May 22, 2026. (Augustini Decl., ¶ 13; Ex. M, PDF p. 114, Ex. N, PDF p. 159.) Thus, the court denies Defendant's motions to compel responses to Form Interrogatories, Set One and Request for Production of Documents, Set One.

The court denies Defendant's and P. Wright's requests for monetary sanctions because the court finds that the circumstances presented make the imposition of sanctions unjust.

ORDER

The court denies defendant George W. Carroll's motions to compel plaintiff Priscilla H. Wright responses to Form Interrogatories, Set One and Request for Production of Documents, Set One.

The court denies defendant George W. Carroll's request for monetary sanctions.

The court denies plaintiff Priscilla H. Wright's request for monetary sanctions.

The court orders defendant George W. Carroll to give notice of this

ruling.

IT IS SO ORDERED.

DATED: July 16, 2026

Robert

B. Broadbelt III

Judge

of the Superior Court